

FOOD SAFETY AND STANDARDS AUTHORITY OF INDIA (FSSAI)

NOTIFICATION: FOOD SAFETY AND STANDARDS (AYURVEDA AAHARA) REGULATIONS, 2022

Gazette of India, Extraordinary, Part III, Section 4, 5th May, 2022

Regulation 1: Title and Commencement:

These regulations may be called the Food Safety and Standards (Ayurveda Aahara) Regulations, 2022.

Regulation 2: Definitions:

(b) "Ayurveda Aahara" means a food prepared in accordance with the recipes or ingredients or processes as per method described in the authoritative books of Ayurveda listed under Schedule A of these regulations, including products which have other botanical ingredients in accordance with the concept of Ayurveda Aahara, but does NOT include Ayurvedic drugs or proprietary Ayurvedic medicines and medicinal products, cosmetics, narcotic or psychotropic substances, herbs listed under Schedule E-1 of Drug and Cosmetics Act 1940 and Rules 1945, metals-based Ayurvedic drugs or medicines, bhasma or pishti, and any other ingredients notified by the Authority.

Explanation 1: Pathya in Ayurveda (foods for health promotion or during/post specified diseases) are covered.

Explanation 2: Industrial scale manufacturing and packaging processes are permitted provided quality matches Schedule A books.

Explanation 3: Daily staples (pulses, rice, flour, raw vegetables) and minimally processed foods do not fall under these regulations.

Regulation 3: General Requirements:

- (1) Food Business Operators (FBO) shall formulate Ayurveda Aahara in accordance with categories and requirements specified in Schedule B.
- (2) Prohibited for administration to infants up to twenty-four months of age.
- (3) FBO shall manufacture Ayurveda Aahara in accordance with Schedule 4 (Good Manufacturing Practices) of FSS Regulations, 2011.
- (4) NO person shall add vitamins, minerals, and amino acids to Ayurveda Aahara (natural vitamins and minerals present may be declared).
- (5) Purity criteria must conform to FSSR, Pharmacopoeias (IP, API, BP, USP), BIS, or ICMR standards.

Regulation 4: Additives: Products shall contain only food additives specified in Schedule C.

Regulation 5: Contaminants: Products shall conform to heavy metals and microbiological safety standards in Schedule D.

Regulation 7: Restriction on Sale: No person shall manufacture, pack, sell, market, or import Ayurveda Aahara unless complying with these regulations.

Regulation 8: Disease Treatment Claims Prohibited: Labelling, presentation, and advertisement shall NOT claim that Ayurveda Aahara has the property of preventing, treating, or curing a human disease.

Regulation 9 & 10: Claims and Prior Approval:

Claims must comply with Advertising and Claims Regulations 2018.

Category A: Authoritative text recipes - no prior approval required for health claims if as per Schedule A books.

Category B: New recipes / botanicals - requires safety data (mutagenicity, carcinogenicity, teratogenicity) and prior approval under Non-Specific Food Regulations 2017.

Category B1: New format - requires rationale and efficacy data.

Category B2: Special medical purpose - requires clinical rationale and efficacy data.

Regulation 13: Mandatory Labelling Requirements:

(a) The words "AYURVEDA AAHARA" printed in immediate proximity of the product name/brand name, and the official Ayurveda Aahara logo (Schedule E) on front of pack.

(b) Advisory warning: "ONLY FOR DIETARY USE" prominently written.

(c) Statement: "Not to be used as a substitute for a varied diet".

(d) Advisory precautions, side effects, contraindications, drug interactions.

(e) Storage: "Keep out of reach of children".

(f) Route warning: "For oral consumption only and not for parenteral use".

SCHEDULE A & SCHEDULE C/D HIGHLIGHTS

Schedule A: Authoritative Books for Ayurveda Aahara (71 classical books including Charaka Samhita, Sushruta Samhita, Ashtanga Hridaya, Bhavaprakasha, Bhaishajya Ratnavali, Sharangadhara Samhita, AFI, API).

Schedule C: Permitted Additives (e.g. Acacia gum max 2%, Guar gum max 2%, Pectins GMP, Honey GMP, Jaggery GMP, Curcumin GMP, Turmeric GMP).

Schedule D: Permissible Contaminants & Microbiological Limits:

- Lead: Max 2.5 mg/kg
- Copper: Max 30 mg/kg
- Arsenic: Max 1.1 mg/kg
- Cadmium: Max 1.5 mg/kg
- Mercury: Max 1.0 mg/kg
- Methyl Mercury: Max 0.25 mg/kg
- Total Aflatoxins: Max 20 microgram/kg; Aflatoxin B1: Max 10 microgram/kg
- Salmonella: Absent in 25g
- Listeria monocytogenes: Absent in 25g